

The Beedi and Cigar Workers (Conditions of Employment) Rules, 1967

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State of Assam - Act

The Beedi and Cigar Workers (Conditions of Employment) Rules, 1967

ASSAM

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The Beedi and Cigar Workers (Conditions of Employment) Rules, 1967

Rule THE-BEEDI-AND-CIGAR-WORKERS-CONDITIONS-OF-EMPLOYMENT-RULES-1967 of 1967

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The Beedi and Cigar Workers (Conditions of Employment) Rules, 1967

Last Updated 10th February, 2020

Chapter I

Preliminary

1.

Short title.

- These rules may be called the Beedi and Cigar Workers (Conditioned of Employment) Rules 1967.

2.

Definition.

- In these Rules unless the context otherwise requires. -

(a)

"Act" means the Beedi and Cigar Workers (Conditions of Employment) Act, 1966 (Central Act 32 of 1966);

(b)

"Form" means a Form appended to these Rules;

(c)

"Section" means a section of the Act.

Chapter II

Licensing of Industrial Premises

3.

Form of application for grant of licence and licence fees.

(1)

Every application under sub-section (1) of Section 4 for a licence to use or allowed to be used any place or premises as an industrial premises shall be made in duplicate in Form I.

(2)

The application shall be accompanied by the following documents namely :

(a)

Plans in triplicate, showing-

(i)

the site of such place or premises, the areas therein to be used for manufacturing processes and the immediate surroundings of such place or premises, including adjacent buildings structures roads, drains and the like; and

(ii)

the plant, elevation and necessary cross sections of the details relating to natural lighting ventilation, means of escape in case of fire, position of the plant and machinery, if any, used, aisles end, passage-ways in or in relation to the various buildings which are intended to be used for manufacturing processes;

(b)

the treasury receipt showing that the appropriate fee for the licence as specified in Rule 8 has been paid.

(3)

The application in duplicate together with the documents specified in sub-rule (2) shall be sent by registered post or delivered by hand under acknowledgement to the competent authority.

4.

Application for renewal.

(1)

Every application for renewal of a licence under Section 4 shall be made in Form 1. The application shall be accompanied by the following documents, namely :

(a)

the licence sought to be renewed;

(b)

the treasury receipt showing that the appropriate fee for the renewal of the license specified in Rule 8 has been paid.

(2)

The application together with the documents specified in sub-rule (2) shall be sent by registered post or delivered by hand under acknowledgement due to the competent authority.

5.

Form and terms and conditions of licence.

(1)

A licence under Section 4 shall be in Form II.

(2)

Every licence granted or renewed under Section 4 shall be subject to the following conditions namely:

(i)

the manufacturing process shall be carried on only in that part of the industrial premises specified for the purpose in the licence;

(ii)

the maximum number of employees employed in the industrial premises shall not on any day exceed the number specified in the licence;

(iii)

power-driven machinery not specified in the licence shall not be used in the manufacturing process in the premises;

(iv)

except with the prior permission in writing of the competent authority the industrial premises shall not be extended and except with the like permission, no structural alterations shall be made in any building Or such premises;

(v)

the licence shall not be transferable;

(vi)

except as provided in Rule 9, the fees paid for the grant, or as the case may be, renewal of the licence shall be non-refundable.

6.

Issue of duplicate licences.

(1)

If a licence under Section 4 is lost, stolen or destroyed, the licensee shall forthwith report the matter to the competent authority by whom the licence was issued or, as the case may be last renewed and may make an application to that authority for the issue of a duplicate licence.

(2)

The application shall be accompanied by a treasure receipt showing that the fee for the issue of a duplicate licence as specified in Rule 8 has been paid.

(3)

On receipt of the application, the competent authority shall grant to the applicant a duplicate copy of the licence duly stamped "duplicate" in red ink.

7.

Appeal under Section 5.

- An appeal under Section 5 of the Act shall-

(a)

be made in writing within a period of thirty days from the date of receipt of the order sought to be appealed against;

(b)

be accompanied by a treasury receipt showing that the appropriate fee in respect of the appeal as specified in Rule 8 has been paid.

8.

Fees.

(1)

The fees to be paid for the grant or renewal of licence under Section 4 shall be as specified in the table below :

Table

Fees for industrial premises in which
power-driven machinery is used

Fees for industrial premises in which
power-driven machinery it not used

(1)

(2)

If the number of employees proposed to be employed on any day
during the financial year for i which the licence is required or
renewed-

Rs.

Rs.

(a) does not exceed ten

15

10

(b) exceeds ten but does not exceed twenty

30

20

(c) exceeds twenty but does not exceed fifty

75

50

(d) exceeds fifty but does not exceed hundred

150

100

(e) exceeds hundred but does not exceed two hundred fifty

300

250

(f) exceeds two hundred fifty

550

500

(2)

The fees to be paid for the grant of a duplicate licence shall be rupees five.

(3)

The fees payable in respect of an appeal under Section 5 of the Act shall be-

(a)

rupees fifteen - in the case of an appeal against an order refusing to grant or renew a licence in respect of any place or premises the maximum number of employees proposed to be employed whereon is one hundred or more;

(b)

rupees ten - in any other case.

(4)

The fees payable specified in this rule shall be paid into the nearest Government Treasure under the head of account XXXVI-Miscellaneous Departments-Miscellaneous-Fees under the Assam Beedi and Cigar Workers (Conditions of Employment) Rules, 1968.

9.

Refund of fees.

(1)

If the competent authority refuses to grant or renew any licence under Section 4, it shall order the refund of the fees paid thereof.

(2)

If no industry or manufacturing process connected with the making of beedi or cigar is carried on in an industrial premises at any time during the period of validity of the licence in respect thereof, the licensee may, within a period of three months from the last date of the financial year for which he licence was granted or renewed, apply to the competent authority for the refund of the fee paid by him for such licence and the competent authority shall, after making such enquiry as he may deem necessary and after satisfying himself about the correctness of the statement made in the application order refund of such fee.

Chapter III

Health and Welfare

10.

Cleanliness.

(1)

Every industrial premises shall be kept clean and free from effluvia, arising from any drain privy or the nuisance and in

particular-

(a)

accumulations of dirt and refuse shall be removed daily by sweeping or by any other effective method from the floors and passages of work rooms and from stair cases and passages and disposed of in a suitable manner;

(b)

the floor of every work room shall be cleaned at least once in every week by washing using disinfectant, where necessary, or by some other effective method :

(c)

all inside walls and partitions of ceilings of rooms and of walls, sides and staircases shall-

(i)

where they are painted or varnished or where they have smooth-polished impervious surface, be cleaned with fresh water and dried at least once in every period of fourteen months;

(ii)

where they are painted or varnished, re-painted or revarnished, at least once in every period of five years;

(iii)

in any other case, be kept white-washed or colour-washed at least once in every twelve months.

(2)

The record of the dates on which white-washing, colour-washing varnishing painting or cleaning as the case may be as carried out under sub-rule (1) shall be entered by the employer in a register maintained in Form III.

11.

Ventilation.

- In every work room or hall of an industrial premises, windows and other forms of openings for ventilation shall be provided in sufficient number to admit a continued supply of fresh air so as to keep the atmosphere inside such room or hall comfortable and free from dust, fumes and other impurity.

12.

Ventilation.

(1)

Latrine accommodation shall be provided in every industrial premises at the rate of one latrine seat for every twenty made employees:

Provided that where the number of such male employees exceeds hundred, it shall be sufficient if there is one latrine seat for every twenty-five male employees up to the first hundred and one seat for every fifty in excess thereof.

Explanation. - In calculating the number of seats required in accordance with the provisions of this sub-rule, any odd number of employees less than twenty-five or fifty, as the case may be, shall be reckoned as twenty, twenty-five or fifty.

(2)

Where female employees are employed on any industrial premises, separate latrine accommodation shall be provided for them in accordance with the same scale as the scale for male employees specified in sub-Rule (1).

(3)

Every latrine shall be under cover and every seat in the latrine shall be so partitioned off as to secure privacy and each partition shall have a private door and fastenings.

(4)

Where the employees of both sexes are employed on any industrial premises, there shall be displayed outside each latrine block thereon a notice in the language understood by the majority of the employees reading. "For Men only" or, as the case may be, "For Women only" and such notice shall also bear the picture of a man or a woman, as the case may be.

13.

Urinals.

(1)

Urinal accommodation shall be provided in every industrial premises (other than industrial premises where less than fifty persons are employed or where the latrines are connected to a water-borne sewage system) and such accommodation shall not be less than six meters in length for every fifty employees :

Provided that where the number of employees employed on the premises exceeds five hundred, it shall be sufficient if

there is one urinal for every fifty employees up to the first five hundred employees and one for every hundred in excess thereof.

Explanation. - In calculating the urinal accommodation required under this rule, any odd number of employees less than fifty or hundred, as the case may be, shall be reckoned as fifty or hundred.

(2)

Where female employees are employed on an industrial premises, separate urinal accommodation shall be provided for them in accordance with the same scale as the scale for male employees specified in sub-rule (1).

14.

Latrines and urinals to be connected to sewage system wherever possible.

- When any general system of underground sewage with an assured water supply is provided for or exists in any particular locality, all latrines and urinals in an industrial premises in such a locality other than a septic tank latrine shall be connected with such sewage system if the industrial premises is situated within 20.5 metres of that sewage system.

15.

White-washing and colour-washing of latrines and urinals.

(1)

The walls, ceilings and partitions of every latrine and urinal shall be white-washed or colour-washed and the same shall be repeated at least once in every period of four months.

(2)

Nothing in sub-rule (1) shall apply in respect of walls and ceilings, of, and partitions in a latrine or urinal or any portions of such walls, ceilings and partitions which are laid in glazed tiles or otherwise finished to prove a smooth-polished impervious surface, but such walls, ceilings, partitions or portions thereof shall be washed with suitable detergents and disinfectants at least once in every period of four months.

(3)

The dates on which the white-washing or colour-washing is carried out under sub-rule (1) or, as the case may be, washing with detergents and disinfectants is carried out under sub-rule (2) shall be entered by the employer in the register maintained in Form III.

16.

Construction and maintenance of drains.

- All drain work on an industrial premises for carrying waste or sullage water shall be constructed in masonry or other permissible materials and shall be regularly flushed and effluent disposed of by connection such drains with suitable drainage liens ; provided that where there is no such drainage line, the effluent shall be deoderised in order to render it innocuous and then disposed of.

17.

Water-taps, etc., in latrines.

- Where piped water supply is available a sufficient number of water as conveniently accessible shall be provided in or near latrines of an industrial premises and where there is no continuous supply of wear, water cisterns with cans shall be provided for washing purposes in or near such latrines.

18.

Washing facilities.

(1)

There shall be provided and maintained in every industrial premises for the use of employees engaged in blending and serving of tobacco or warming of beedis in hot ovens, adequate and suitable facilities for washing which shall include soap and nail brushes or other suitable means of cleaning and such facilities shall be conveniently accessible and shall be made available in clean and orderly conditions.

(2)

If female employees are employed on any industrial premises, separate washing facilities on the same lines as those specified in sub-rule (1) in respect of male employees shall be provided for such female employees in enclosed or screened places in such manner that the interior portion of such places are not visible from any place where male employees work or pass through and the entrance to every such place shall bear a notice in the language understood by the majority of the employees reading. "For Women only" in bold and conspicuous letters and such notice shall also bear the picture of a woman.

(3)

Water supply for the purposes of washing facilities under sub-rule (1) or sub-rule (2) shall be such as to provide at least 27.3 litres per day for each person employed in the industrial premises and such water shall be drawn from a hygienic source :

Provided that where an Inspector is satisfied that it is not practicable to make available water-supply in accordance with the scale specified under this sub-rule, he may, by a certificate in writing, permit the supply of a lesser quantity which shall in any case be not less than 4.5 litres per day for each employee.

19.

Creches.

(1)

The employer shall submit for the approval of the competent authority detailed plans in triplicate of the rooms to be constructed or adopted for use as creches under Section 14.

(2)

The creches shall conform to the following standards, namely :

(a)

The creches shall be conveniently accessible to the mothers of the children accommodated therein and so far as is reasonably practicable it shall not be situated in close proximity to any part of the industrial premises where obnoxious fumes, dust or odours are given off;

(b)

the room or rooms used as creches shall be soundly constructed and all the walls and roofs thereof shall be of heat-resisting materials and shall be water-proof;

(c)

the floor and internal walls of the creche up to a height of 1.2 metres shall be so laid or furnished as to provide a smooth and impervious surface;

(d)

the height of each room used as creche shall not be less than 3.7 metres from the floor to the lowest part of roof and there shall not be less than 1.9 sq. metres of floor area for each child to be accommodated therein;

(e)

effective and suitable provision shall be made in every part of a creche for securing and maintaining adequate ventilation by the circulation of fresh air ;

(f)

the creche shall be adequately furnished and equipped and in particular there shall be made available-

(i)

for each child of more than two years of age a suitable bedding ;

(ii)

for each child of not more than two years of age a suitable cot or cradle with a necessary bedding ;

(iii)

at least one chair and other suitable sitting accommodation for the use of each mother while she is feeding or attending to her child, and

(iv)

a sufficient supply of suitable toys for the older children.

(3)

There shall be in or adjoining a creche a suitable washing room for the washing of the children and their clothing and such room shall conform to the following standards, namely:

(a)

the floor and internal walls of the room up to a height of 0.9 cm. shall be so laid and furnished as to provide a smooth and impervious surface ;

(b)

the room shall be adequately laid and ventilated and the floor shall be effectively drained and maintained in a clean and tidy condition ;

(c)

the supply of water for washing shall be from a hygienic source and if practicable shall be through taps ;

(d)

supply for at least 22.7 litres of water per day for each child shall be made available;

(e)

an adequate supply of clean clothes, soap and clean towels shall be made available for the use of each child ;

(f)

adjoining the wash rooms, a septic tank latrine shall be provided for the sole use of the children in the creche and the same shall be kept clean and in a sanitary condition.

(4)

The employer shall make available at least half of a pint of pure milk for each child on every day it is accommodated in the creche and the mother of each child shall, in the course of daily work, be allowed adequate intervals of not less than fifteen minutes to feed the child.

(5)

In addition to providing milk in accordance with the provisions of sub-rule (4) the employee shall provide for children above two years of age, who are accommodated in the creche, an adequate supply of wholesome refreshment.

(6)

The employer shall appoint a woman trained in the care of children and infants and sufficient number of ayahs for the purpose of looking after the children accommodated in the creche and he shall also provide suitable equipment and facilities for the purpose.

Explanation. - The number of ayahs to be appointed in the creche shall be calculated at the rate of one ayah for every thirty children.

(7)

The employer shall provide for the staff employed in a creche suitable clean clothes for use while on duty in the creche.

Explanation. - In this rule 'child' means a child under six years of age of a female employee.

20.

First-aid.

(1)

In every industrial premises there shall be provided and maintained so as to be readily accessible during all working hours first-aid boxes or cupboards containing the equipments specified in sub-rule (2) and the number of boxes or cupboards to be so provided and maintained shall not be less than one for every hundred and fifty employees employed at any one time in the premises.

(2)

The first-aid boxes or cupboards shall be distinctively marked with red cross on white background and shall contain the following equipments, namely:

(i)

six small sterilised dressing ;

(ii)

three medium size sterilised dressings ;

(iii)

three large size sterilised dressings ;

(iv)

three large size sterilised dressings ;

(v)

one (1 oz.) bottle containing salvolatile having the dose and mode of administration indicated on the label ;

(vi)

one (1 oz) bottle containing a 2 per cent alcoholic solution of iodine :

(vii)

a snake bite lancet ;

(viii)

one (1 oz) bottle of potassium permanganate crystals ;

(ix)

One pair scissors ;

(x)

eye drops ;

(xi)

adhesive plaster.

(3)

Each first-aid box or cupboard shall be kept in the charge of a person who is trained in first-aid treatment and who shall always be readily available during the working hours of the industrial premises.

21.

Canteens.

(1)

The employer of every industrial premises wherein not less than 250 employees are ordinarily employed shall provide in, or near the industrial premises, a canteen.

(2)

The canteen shall not be situated within 15.2 metres of any latrine, urinal or any other source of dust.

(3)

The canteen building shall consist of at least a dining hall, kitchen, store room and pantry in addition to washing places separately for employer's and utensils.

(4)

The minimum height of the building shall be not less than 3.7 metres and all the walls and roofs shall be of suitable heat-resisting materials and shall be water-proof. There shall be provision for adequate ventilation. The door and window shall be of fly-proof construction.

(5)

The canteen shall be sufficiently lighted at all times when any person has access to it.

(6)

(a)

In every canteen-

(i)

all inside walls of rooms and all ceilings and passages and stair cases shall be lime-washed or colour-washed at least once in each year or painted once in three years dating from the period when last lime-washed or colour-washed or painted, as the case may be ;

(ii)

all wood-work shall be varnished and painted once in three years dating from the period when last varnished ; or

(iii)

all internal structural iron or steel shall be varnished or painted in three years dating from the period when last varnished or painted :

Provided that the inside portions of the walls of the kitchen shall be lime-washed once in every four months.

(b)

The dates on which lime-washing, colour-washing, varnishing or painting is carried out shall be entered by the employer in the register maintained in Form III.

(7)

The precincts of the canteen shall be maintained in a clean and sanitary condition. Waste water shall be carried out away in suitable covered drains and shall not be allowed to accumulate so as to cause a nuisance. Suitable arrangements shall be made for the collection and disposal of garbage.

(8)

(a)

The dining hall shall accommodate at a time at least 30 per cent of the employees working at a time.

(b)

The floor of the dining hall, excluding the areas occupied by the service counter and furniture except tables and chairs shall not be less than 93 sq. m. per diner to be accommodated as specified in Clause (a).

(c)

A portion of the dining hall and service counter shall be partitioned off and reserved for women employees in proportion to their numbers. Washing places for women shall be separate and screened to secure privacy.

(d)

Sufficient tables, chairs, or benches shall be available for the number of diners to be accommodated as specified in Clause (a).

(9)

(a)

There shall be provided and maintained sufficient utensils, crockery, cutlery, furniture and any other equipment necessary for the efficient running of the canteens. Suitable clean clothes for the employees serving in the canteen shall also be provided and maintained.

(b)

The furniture, utensils and other equipment shall be maintained in a clean and hygienic condition. A service counter, if provided, shall have at top, smooth and impervious material. Suitable facilities including an adequate supply of hot water shall be provided for the clearing of utensils and equipment.

(c)

Food and Food materials shall be stored in fly-proof sales and handled with the help of wooden ladles or suitable metal forceps whichever is convenient. Vessels once use shall be cleaned before being used again.

(10)

Food, drinks and other items served in the canteen shall be served on a no-profit no-loss basis.

Chapter IV

Working Hours, Leave, Appeals in Cases of Dismissal, Etc.

22.

Notice and register of periods of work.

(1)

Every employer shall exhibit in his industrial premises a notice in Form IV specifying clearly the daily hours of work, intervals for rest and weekly holiday allowed to the employees or, as the case may be, to such class of employees.

(2)

Every employer shall maintain a register showing the hours actually worked including over-time in Form V.

23.

Method of calculating cash equivalent of concessional sale of food-grains, etc.

(1)

The cash equivalent of the advantage accruing through the concessional sale to an employee of foodgrains and other articles shall be computed at the end of every wage period fixed under the provisions of the Payment of Wages Act, 1936 (Central Act

4 of 1936

).

(2)

For the purposes of Section 18, the cash equivalent of the advantage accruing through the concessional sale of foodgrains and other articles to an employee required to work over-time shall be computed as a sum equivalent to the difference between the value of such foodgrains and other articles at the average market rates prevailing during the wage period in which the employed worked over-time and the concessional price thereof.

24.

Register of leave with wages.

(1)

The employer shall in respect of employees employed in his industrial premises keep an up-to-date register in Form VI hereinafter referred to as the Register of Leave with Wages (Regular Employees):

Provided that if the competent authority is of opinion that any muster roll or register maintained by the employer gives the particulars required for the enforcement of the provisions of Sections 26 and 27, he may be order in writing permit such muster roll or register to be treated as the register required to be maintained under this sub-rule.

(2)

The employer shall in respect of the employees who are permitted to work in their houses (hereinafter referred to as the

home-workers) maintain in up-to-date register in Form VII [hereinafter referred to as the Register of Leave with Wages (Home-workers)].

25.

Leave Book.

(1)

The employer shall provide each employee (including a home-worker) with a book in Form VI or Form VII, as the case may be (hereinafter referred to as the Leave-Book).

(2)

The leave Book shall be the property of the employee and the employer shall not demand it except for making entries therein and shall not keep it for more than a week at a time.

(3)

If an employee loses his Leave Book, the employer shall provide him with a duplicate copy on payment of six paise.

26.

Appeals under Section 31.

(1)

The appellate authority for the purposes of sub-section (2) of Section 31 shall be the Labour Court constituted under the Industrial Disputes Act, 1947, as may be specified for the purpose.

(2)

An employee who is discharged, dismissed or retrenched may prefer an appeal under sub-section (2) of Section 31, to the appellate authority specified under sub-rule (1) within a period of thirty days from the date of communication of the order of such discharge, dismissal or retrenchment :

Provided that an appeal may be admitted after the said period of thirty days if the appellant satisfied the appellate authority that he had sufficient cause for not preferring the appeal within the said period.

(3)

The notice to be given by the appellate authority under Clause (b) of sub-section (2) of Section 31 shall-

(a)

in the case of a notice to an employer, be in Form VIII; and

(b)

in the case of a notice to an employee, be in Form IX,

and every such notice shall be sent to the party concerned by registered post acknowledgement due.

Chapter V

Miscellaneous

27.

Disputes relating to issue of raw materials by the employer.

(1)

Any dispute between an employer and an employee or employees in relation to-

(a)

the issue by the employer of raw materials to the employee ;

(b)

the rejection by the employer of beedi or cigar or both made by an employee; or

(c)

the payment of wages for the beedi or cigar or both rejected by the employer;

may be referred in writing by the employer or the employee or employees to an Inspector appointed under the Act who shall, after making such enquiry as he may consider necessary and after giving the parties an opportunity to represent their respective cases decide the dispute and record the proceedings in Form X.

(2)

Any party to the dispute aggrieved by the decision thereon under sub-rule (1) may prefer an appeal within a period of thirty days from the date of the decision to the Chief Inspector appointed under the Act :

Provided that the said authority may admit an appeal after the said period if the appellant satisfies such authority that he had sufficient cause for not preferring the appeal within that period.

28.

Supervision of distribution of raw materials.

- No employer shall, if he is required so to do by an Inspector by an order in writing, distribute, except under the supervision of the Inspector making the order or the supervision of another Inspector, raw materials to such employee or employees and during such period as may be specified in the order.

29.

Rejection as Chhat.

- No employer or contractor shall ordinarily reject as sub-standard or chhat or otherwise more than 2.5 per cent of the beedis or cigars or both received from a worker including a home worker :

Provided that the employer or contractor may effect such rejection up to 5 per cent for reasons to be recorded and communicated in writing to the worker.

30.

Payment of wages to a home-worker.

- Where raw materials are supplied to a home-worker at his home, the wages due to him shall also be paid at his home :

Provided that an Inspector may, if he considers it expedient so to do in the circumstances of any case, specify in respect of any home-workers any other place or places at which wages shall be paid.

31.

Protection against fire.

- In every industrial premises, the employer shall provided adequate fire-fighting equipment.

32.

Returns.

- he employer in respect of every industrial premises shall send to the competent authority on or before the 10th day of every month a monthly return in Form XI and furnish to that authority an annual return in Form XII on or before the 30th April of every year.

33.

Maintenance of certain registers.

(1)

Every employer shall, in respect of the employees on the industrial premises, maintain a muster roll in Form XIII, and entires therein shall be made at the commencement of the work each day.

(2)

Every employer shall provide free of cost to each home-worker two books in Form XIV (hereinafter referred to as the 'home-worker's log book) and the home-workers shall keep a record of the daily work done by him, the number of beedis and cigars manufactured by him and the wages received by him in the said book and the supply of books shall be such arranged that one book remains with the home-workers at all times during the period between two successive supplies of raw materials by the employer.

(3)

Every employer shall maintain a home-workers' employment register in Form XV containing the name and particulars of all the home-workers employed under him and the entries in the register shall be made and kept up-to-date on the basis of the entries in the home-workers' log books.

(4)

Every employer shall maintain a visitor's book in which an Inspector visiting the industrial premises may record his remarks regarding any defects that may come to his notice at the time of his inspection and the employer shall produce such book whenever required so to do by the Inspector.

(5)

Every employer shall maintain a register of over-time work in form XVI.

(6)

An abstract of the Act and the rules made thereunder shall be displayed in some conspicuous part of every industrial premises.

(7)

Every register referred to in this rule shall be preserved for a period of three years from the date of the entry noted therein and shall be readily available for inspection during working hours of the industrial premises.

34.

Record of outside work.

- The record to be maintained by the employer of the work permitted under sub-section (1) of Section 29 to be carried on outside the industrial premises shall be in Form XVII.

Form No. I

[See Rules 3 and 4]

Application for grant of renewal of licence for the financial year.....

1. Full name of the industrial premises....

2. (i) Full postal address and situation of the industrial premises...

(ii)
Full address to which communications relating to the industrial premises should be sent...

(iii)
Full address of the applicant...

3. Maximum number of employees proposed to be employed on any one day during the financial year.....

4. Full name and residential address of the person who shall be the employer for the purposes of the Act.....

5. If the employer is a partnership, company, etc., full names and residential addresses of other partners or directors, etc. (See Note 1 at the end)....

6. Financial resources of the employer (e.g., particulars and value of moveable and immovable properties, bank reference, income-tax assessment, etc.).....

7. Whether the employer is a trade mark holder register under the Trade and Merchandise Marks Act, 1958.....

8. Value of beedies or cigars or both manufactured at the industrial premises during the proceeding financial year....

9. Previous experience of the applicant in the industry.....

10. Source of obtaining tobacco.....

11. Whether the beedies or cigars or both manufactured by the applicant will be sold and marketed by himself or through a proprietor or a registered user of a trade mark registered under the Trade and Merchandise Marks Act, 1958, or any other person....

12. Whether the plans of the premises are enclosed.....

13. Amount of Rs.....(rupees) paid in Treasury on.....vide Challan No.....enclosed.

I hereby declare that particulars furnished by me in the Form are to the best of my knowledge and belief accurate.

Date.....

Signature of the applicant

Note I. - Where an industrial premises are run or proposed to run by a contractor for or on behalf of another person or persons or company etc., the said other person or persons or company etc., is under the Act the employer and particulars to be entered for "employer" in the Form should be in regard to such person, persons or company etc.

The applicant for licence may, however, be made either by the contractor or the employer.

Note II. - (1) This Form shall be completed in ink in block letters or typed.

(2)

If any person named against item 5 is a minor, the fact shall be stated clearly.

Form No. II

[See Rule 5]

Licence

Licence No Fee : Rs.....

Registration No.....

Licence is hereby granted to valid only for the premises described below for use as an industrial premises employing not more than employees on any one day during the year subject to the conditions specified in Annexure.

The licence shall remain in force till the 31st day of March.....

Name of industrial premises.....

Situation of the industrial premises.....

Permission is also granted for the installation of power-driven machinery.... Date.....

Signature and Seal of the competent authority

Renewal

[See Rule 4]

Date of renewal

Fees paid for renewal

Date of expiry

1.2.3.4.

Date.....

Signature and seal of the competent authority.....

Annexure

This licence is subject to the following conditions :

1. The manufacturing process shall be carried on only in that part of the industrial premises as specified for the purpose in the licence.
2. The maximum number of employees employed in the industrial premises shall not on any day exceed the number specified in the licence.
3. Power-driven machinery not specified in the licence shall not be used in the manufacturing process in the premises.
4. Except with the prior permission in writing of the competent authority, the industrial premises shall not be extended and except with the like permission, no structural alteration shall be made in any building on such premises.
5. The licence shall not be transferable.

Form No. III

[See Rules 10(2), 14(3), 21(6) (b)]

Record of White-Washing, Colour-Washing, Varnishing and Painting and Cleaning

Part of the industrial premises (eg. name of room)

Parts whitewashed, colour-washed, painted or varnished (e.g., walls ceilings, wood work, etc.)

Treatment, whether white-washed, colour-washed painted or varnished or cleaned

Date on which white-washing, colour-washing, painting or varnishing or cleaning was carried out according to the English calendar

Remarks

Signature of employer

Date

Month

Year

Form No. IV

[See Rule 22(1)]

Notice of Periods of Works

Figures 1, 2, 3 relate to 1st, 2nd and 3rd shifts or relays.

Name of the industrial premises.....Place.....District

Period of work

Men

Women and young person

Description of groups

Remarks

(Total number of men employed)

(Total number of women and young persons employed)

Group letter

Nature of work

123

A1 2 3

B1 2 3

C1 2 3

D1 2

E1 2

F1 2

One working daysFromToFromToOn partial
working daysFromToFromToWeekly holidays
ABCDEF

Date on which this notice comes into force

Employer

Form No. V

[See Rule 22(2)]

Register Showing Hours of Work Including Overtime

Week ending.....

Name of the employee

Whether young person or not

Total hours worked during the week

Date on which over-time work is done and extent
of such over-time on each occasion

Extent of over time worked during the week

1

2

3

4

5

Form No. VI

[See Rules 24(1) and 25(1)]

Register of Leave with Wages (Regular Employees)

Leave Book

Separate page shall be allowed to each employee.

Adult/young person.....

Serial No.....

Name.....

Date of entry into service.....

Father's name.....

Name of establishment.....

Date of joining the establishment.....

Date of discharge.....

Date of amount of payment made in lieu of leave
due.....

Leave at Credit

Calendar year of service

Wage period from.... to...

Number of days of work performed, during the
calendar year

Balance of leave from the preceding year

Leave earned during the year mentioned in column
(1)

Total of columns (4) and (5)

Leave enjoyed from.... to....

1
2
3
4
5
6
7

Balance of leave to credit

Normal rate of wages, i.e., daily average of full
time earnings in cash

Cash equivalent of advantage accruing through
concessional sale of foodgrains, etc.

Rate of Wages for the leave period [Total of
columns (9) and (10)]

Date and amount paid

Remarks

8
9
10
11
12
13

Form No. VII

[See Rules 24 (2) and 25 (1)]

Register of leave with wages

[Home Workers]

(Separate pages shall be allotted to each employee)

Leave Book

1. Name of establishment.....
2. Serial No.....
3. Name of employee and age.....
4. Father's/husband's name.....
5. Date of entry into service.....
6. Date of discharge.....
7. Amount paid in lieu of leave.....
8. Calendar year of service.....
9. Number of days worked during the year.....
10. Balance of leave from preceding year.....
11. Leave earned during the year mentioned in column (8).....
12. Total of columns (10 and 11).....
13. Leave enjoyed from.....to.....
14. Balance of leave to credit.....
15. Normal rate of wages, i.e., daily average of full time earning in cash.....
16. Cash equivalent of advantage accruing through concessional sale of foodgrains, etc., if any.....
17. Rate of wages for the leave period (total of columns 15 and 16).....
18. Date and amount paid.....
19. Remarks.....

Form No. VIII

[See Rules 26 (3) (a)]

Notice to the employer under Clause (b) of sub-section (2) of Section 31

Sri..... has appealed to the appellate authority under Clause (a) of sub-section (2) of Section 31 of the

Beedi and Cigar Workers (Conditions of Employment) Act, 1966 against the orders of his discharge/dismissal/retrenchment. A copy of his appeal petition is enclosed.

The appeal has been posted for hearing on the day of 19 at a.m./p.m. at.....

You should appear before the Appellate Authority on that day and answer the claims. You must be prepared to produce on that day all the witnesses upon whose evidence and all the documents upon which you intend to rely in support of your defence. In default of your appearance on that day the matter will be heard and determined in your absence.

Appellate authority

Form No. IX

[See Rules 26 (3)(b)]

Notice to employee under Clause (b) of sub-section (2) of Section 31

Your appeal has been posted for hearing on the day of... 19 ata.m./p.m. at.....

You should appear before the appellate authority on that day to prove the claim. You must be prepared to produce on that day all the witnesses on whose evidence and all documents upon which you intend to rely in support of your case. In default of your appearance on that day, the matter will be heard and determined in your absence.

Appellate Authority

Form No. X

[See Rules 27 (1)]

Record of Decision or Order

1. Serial No.....
2. Date of application.....
3. Name or names, parentage, address or addresses of applicant or some or all of the applicants.....
4. Name and address of the employer.....
5. Substance of the dispute.....
6. Plea of parties and their examination, if any.....
7. Documents seen.....
8. Substance of the evidence taken.....
9. Finding and brief statement of the reasons therefor.....
10. Decision.....

Date.....

Signed

Form No. XI

[See Rule 32]

Monthly Return

1. Name of the industrial premises and full postal address.....
2. No. and date of licence
3. Month to which the return relates.....
4. Name of the employer.....
5. Name of the principal employer, if the employer is working as contractor for principal employer.....
6. Quantity of beedi and/or cigar tobacco released by the Central Excise Department.....
7. Quantity of beedi and/or cigar tobacco supplied by the principal employer.....
8. Number of beedi and/or cigars manufactured by the employer in industrial establishment.....
9. Number of beedis and/or cigars manufactured by the employer in places other than industrial establishment, i.e., workers working in their homes.....
10. Number of beedis and/or cigars sold and to whom.....

Date.....

Signature of employer

Form No. XII

[See Rules 32]

Annual Return

1. Name and address of the industrial premises.....
2. No. and date of licence.....

3. Name of the employer.....
4. Name of the principal employer if the employer is working as contractor for a principal employer.....
5. Average number of employees employed daily in the industrial premises :
- Men.....
- Women.....
- Young persons.....
- Male.....
- Female.....
6. Average monthly number of home workers employed (i.e., who work in their homes).....
7. Normal hours worked per week in the industrial premises.....
8. Number of days worked in the year in the industrial premises.....
9. Number of employees who were granted leave during the calendar year-
- Young persons :
- (a)
- employed in the industrial premises.....
- (b)
- employed in home
- Other than young persons :
- (a)
- employed in the industrial premises.....
- (b)
- employed in homes.....
10. Number of female employees who were given maternity benefit during the year:
- (a)
- employed in industrial premises
- (b)
- employed in home.....
- Certified that the information furnished above is to the best of my knowledge and belief correct.
- Date.....
- Signature of the employer
- Note : Partial attendance for less than half a shift of working day shall be neglected and attendance for half a shift or more shall be treated as full attendance.
- The average daily number shall be calculated by dividing the aggregate number of attendance of working days by the number of the working days in the year. Attendance on separate shifts, e.g., night and day shifts shall be counted separately.
- The average shall be calculated by dividing the aggregate number of workers on the Home Workers Employment Register during each of the preceding 12 months by twelve.
- Form No. XIII
- [See Rules 33 (1)]
- Muster Roll of employees
- Date.....
- Name and address of the industrial premises.
- Serial No.
- Name
- Designation
- Group
- Relay
- Shift No.
- Period of work
- Remarks

2
3
4
5
6
7
8

Form No. XIV

[See Rules 33 (2)]

Home Workers' Log Book

1. Name of home worker.....
2. Address of the home where manufacturing process is carried on.
3. Month..

Account of the work done at homes

Date

Whether work was done

Number of beedis/cigars manufactured

Wages received

- (1)
- (2)
- (3)
- (4)

4. Total number of days worked in the month....

Date and signature or thumb-impression of the home worker

Form No. XV

[See Rule 33(3)]

Home Worker's Employment Register

Month Ending.....

[Beedis manufactured should be shown in respect of each home worker below the appropriate date]

Name of worker

Address of Home

Waged paid

Dates

1 2 3 4 5 6 7 8 9 10 11 12 13 14 15 16 17 18 19 20 21 22 23 24
25 26 27 28 29 30 31

Form No. XVI

[See Rules 33 (5)]

Register of Over-time Work

Month Ending.....

Name

Designation

Date on which over-time has been worked

Extent of over-time

Total over-time worked or production in case of
piece workers

Normal hours

Normal rate of pay

- (1)
- (2)
- (3)
- (4)

(5)
(6)
(7)
Over-time rate of pay
Normal earnings
Over-time earnings
Cash equivalent of advantage accruing through the
concessional rate of foodgrains, etc.
Total earnings
Date on which over-time payment made
(8)
(9)
(10)
(11)
(12)
(13)
Form No. XVII
[See Rules 34]
Record of Outside Work
No. and date of Government's Order permitting work outside the industrial premises.....
Date
Place or places where outside work was permitted
Nature of work
Nature of employee
Remarks
(1)
(2)
(3)
(4)
(5)
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